

EXHIBIT D

RT Day 7, p. 213

Case No.: CGC-21-594102

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: RT Day 7, p. 213

1 You folks, however, must have a device that
2 plays the recording. I don't see anything in front of
3 me right now.

4 You may have it in the anteroom, but that
5 needs to be ready and there should be no delays in
6 playing that once Mr. Rosario seeks to have that
7 played in front of the jury.

8 The transcripts, there should be 18 of them.
9 That is 15 for the jurors that are here; one for
10 Defense Counsel, who apparently has one; one for the
11 Court and one for the Courtroom Deputy.

12 And instruction that is always given is that
13 the evidence in the case is what the recording
14 purports to be -- I have already instructed them as
15 much -- not what the transcript says. All right?

16 The transcript is simply a guide for the
17 jurors to follow along.

18 To the extent that there is some difference
19 in what happened, it is the recording that takes
20 priority and is the evidence for them to consider.
21 All right.

22 So that addresses the 911.

23 Is there something else that you seek to have
24 admitted? I don't want to spend time during the
25 middle of the trial addressing these issues during the
26 time when the jury is present. It is a waste of their
27 time.

28 MR. ROSARIO: Your Honor, the Defense asked